

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Opening Brief of Appellant City of Norvale Filed March 23, 2026

The City appeals an order preliminarily restraining its content-neutral Paid-Speaker Permit Ordinance. Norvale agrees that literary readings are protected and disclaims any authority to favor a viewpoint. The dispute concerns a recurring-event process designed to collect schedules and allocate municipal resources before audience concentrations occur. The district court acknowledged those interests yet enjoined the ordinance without giving adequate weight to the difference between planned presentations and dispersed vendor conversation, the evidence supporting advance coordination, or the limits of preliminary review.

The order also fails Federal Rule of Civil Procedure 65. It restrains “enforcing the Paid-Speaker Permit Ordinance” while preserving broad neutral safety powers, leaving employees uncertain which applications, disclosures, charges, and conditions remain permissible. It sets no security and makes no express security determination. The City asks this Court to reverse the injunction. At minimum, the Court should vacate the operative terms and remand for a precise, record-supported order rather than leave an ambiguous restraint in place.

Jurisdiction and issues presented

The district court had federal-question jurisdiction over the Guild's constitutional claims. On January 23, 2026, it entered an order granting a preliminary injunction. JA115–124. The City filed a notice of appeal on January 29. JA144. This Court has jurisdiction under 28 U.S.C. § 1292(a)(1), which expressly covers interlocutory orders granting injunctions. The underlying merits remain pending; the City does not invoke final-judgment jurisdiction or ask this Court to decide permanent relief.

The issues are: first, whether the Guild clearly established likely success against a content-neutral recurring-event permit whose trigger identifies planned compensated presentations and whose information and fees support coordination; second, whether the Guild established likely irreparable harm and favorable equities despite the City's amendment practice and retained alternatives; third, whether the order satisfies Rule 65(d)'s specificity requirement; fourth, whether the absence of any express security determination satisfies Rule 65(c); and fifth, whether reversal, vacatur, or a limited corrective remand is the proper remedy.

Statement of the case: the event series

The Guild has held free book fairs at Cedar Commons since 2019. A typical fair includes eighteen to twenty-eight sellers and four to seven paid authors. JA1–8, JA34–48. The history is generally peaceful, and the City has never claimed otherwise. Two minor medical calls occurred; unloading produced occasional vehicle delay; seller materials sometimes narrowed the service path; and listeners gathered near the central walk when readings ended. JA30–33, JA44–64. These facts describe manageable concerns, not imaginary ones.

Cedar Commons borders transit stops, a loading lane, and a signalized crossing. It serves many users. A scheduled presentation can gather an audience at a known time and prompt coordinated movement afterward. City personnel must compare reservations, preserve emergency access, plan sanitation, and decide whether ordinary staffing is enough. The Guild's volunteers share those goals and use site diagrams, loading windows, and presentation schedules. The record thus confirms that advance information has a practical operational function even when no violence is expected.

The Guild announced six 2026 dates. JA34–38, JA58–64. Its roster changes as authors confirm travel, publication, and caregiving arrangements. The City accepts that reality. Its staff told the Guild that a later substitution could be requested and would be reviewed in light of timing and operational effect. JA30–38. The ordinance does not guarantee every amendment, because a new author or format may change attendance, equipment, or presentation needs close to an event.

The district court treated uncertainty about that review as a constitutional injury. But the Guild had not identified a completed denied substitution or a viewpoint-based inquiry. It could supply its planned roster, seek amendments, use unpaid speakers, adjust programming, or choose another suitable site. The City does not argue those alternatives are costless or identical. It argues that the absence of an unconditional late-change entitlement does not make a neutral planning system likely unconstitutional before its actual application is developed.

The ordinance and its evidence

Ordinance N-2025-18 governs compensated scheduled speakers at recurring public events. An organizer applies separately at least forty-five calendar days before each date and provides the paid speaker's name, topic, and time, a site plan, attendance estimate, traffic proposal, and emergency contact. The schedule charges \$240 per event and \$45 per paid speaker. Denials and conditions must rest on documented crowd, traffic, emergency, sanitation, competing-use, or municipal-resource risks and must be explained in writing. JA15–22.

The ordinance bars viewpoint consideration. A topic description may be general, such as “novelist reading and questions.” Ordinary sellers who do not address an audience are outside the added process. Compensation is not treated as danger; it identifies an organized presentation the event sponsor has scheduled and controls. Staff selected an objective trigger instead of attempting to predict, from content or popularity, which unpaid conversation might draw listeners. JA23–29.

The legislative record arose from recurring-event experience. Parks, transit, nearby businesses, and safety personnel described uncertainty about concentrated audiences, loading, emergency routes, and staffing. JA23–29. The City considered an attendance-only trigger but recognized that estimates can be unreliable and that a scheduled program creates known transitions within a larger event. A paid-speaker rule supplies stable information without asking whether an idea is controversial.

The initial permit history is short but neutral. Two complete applications were approved with conditions tied to a measured emergency route and a bus boarding area. An incomplete applicant supplied missing logistical information. No permit was denied, no event was closed, and no decision discussed a message. JA30–33. The district court discounted that evidence because it did not isolate every minute of staff time or resolve a contested late substitution. A preliminary record's limits should have counseled restraint, not a finding that the system likely fails.

Proceedings and standard of review

The Guild sought preliminary relief on the day it filed its complaint. The City answered and opposed. The parties submitted a stipulated chart, declarations from organizers and officials, site materials, dispatch abstracts, municipal history, and a reported hearing. JA1–114. On January 23, the district court found no content or viewpoint discrimination but concluded the paid-speaker mechanism likely lacked adequate fit. It enjoined enforcement against all six announced fairs. JA115–124.

Under *Pashby v. Delia*, a movant must clearly establish each *Winter* factor: likely success, likely irreparable injury, a favorable equity balance, and consistency with the public interest. Legal conclusions receive de novo review, factual findings clear-error review, and the ultimate injunction abuse-of-discretion review. A district court abuses discretion when it applies an incorrect legal framework, demands evidentiary precision beyond narrow tailoring, discounts un rebutted governmental interests, or enters relief broader and less precise than its findings permit.

Summary of argument

The Guild did not clearly establish likely success. *Billups v. City of Charleston* confirms that paid expression is protected and that content-neutral burdens require meaningful tailoring. It does not hold that compensation can never define an administrable category, that governments must use the least restrictive imaginable rule, or that every fee must match each task minute for minute. Norvale connects its requirements to planned presentations, written coordination, and predictable audience movement, and it constrains decisions with neutral documented-risk criteria and written reasons.

The remaining factors do not repair that merits weakness. The Guild alleged planning uncertainty and cumulative costs, but no application had been denied and amendments remained possible. The City faces real institutional and operational harm from administering six dates without a clear framework. The injunction's general language itself magnifies that harm. Rule 65(c) and (d) provide independent reasons to set the order aside. The Court should reverse; alternatively, it should vacate and remand rather than affirm entitlement while preserving an invalid operative command.

I. Content neutrality is undisputed and matters to fit

The district court correctly rejected any claim that Norvale regulates viewpoint. JA117–119. Coverage does not depend on whether an author addresses politics, fiction, religion, City criticism, or children's literature. The general topic line identifies format and distinguishes a scheduled address from ordinary vendor conversation. No official reviewed ideological acceptability, and the early decisions imposed only site-based conditions. JA15–33, JA49–57.

That neutral design is relevant beyond selecting a doctrinal label. The City chose compensation because it is an objective indication that an organizer arranged and controls a presentation. The alternative—deciding which unpaid conversations count as speeches—could invite greater discretion. The rule also requires written reasons based on identifiable operational categories. A court evaluating tailoring should credit those safeguards and the government's effort to use a stable trigger rather than treat every imperfection as proof of excessive burden.

II. The district court demanded too exact a proxy

Narrow tailoring requires a reasonable fit, not perfect correspondence. The City need not show that every paid author draws a larger crowd than every unpaid speaker or that payment causes congestion. The operational distinction is between a planned audience presentation and diffuse commerce. Compensation helps identify the former through information an organizer can verify at application time. The schedule, topic, and time then permit more specific review.

The court effectively required the City to regulate only direct variables such as audience and equipment. JA119–121. But attendance estimates can be uncertain, and the same estimated total may obscure a concentrated transition. A recurring fair with twenty sellers and six timed readings uses space differently from twenty tables alone. The ordinance combines the trigger with direct site information; it does not substitute payment for all operational facts. The Constitution does not compel Norvale to abandon a predictable category simply because another system could also work.

Billups does not dictate a different result. There, this Court required evidence connecting a licensing burden to asserted interests and considered substantially less restrictive alternatives. Here Norvale supplied legislative findings, site experience, declarations, maps, dispatch material, and pilot decisions. JA23–33, JA49–64. That evidence identifies the audience movements, transit interface, loading lane, service route, and staffing decisions the process addresses. It is more than intuition or post hoc argument.

The stipulated alternatives chart is advocacy, not proof that each proposal serves the interests equally. JA88–92. A presentation-only schedule without a stable trigger still requires officials to define presentation. Attendance thresholds may be manipulated or fail to capture concentrated transitions. Case-by-case conditions without advance submissions reduce predictability. The City need not prove every alternative impossible; narrow tailoring permits a burden that promotes the interest without suppressing substantially more speech than necessary.

III. The disclosure and amendment features are reasonable

The name, general topic, and time requirements are modest. A name identifies the scheduled participant; a topic can be phrased generically; a time is indispensable to coordination. The City does not approve ideas. The Guild's concern is that authors sometimes confirm late. Staff responded that amendments would be considered, and the City's stay papers offered a three-business-day review condition for final submissions. JA30–38, JA125–130.

The ordinance's failure to guarantee every substitution does not create unbridled discretion. Conditions and denials must rest on documented crowd, traffic, or resource risks and be explained. A change with the same operational features should be easy to approve; one expected to attract a different audience or use equipment may require review. The Guild had not tested that boundary through a concrete disputed request. Preliminary invalidation based on uncertain future administration was premature.

The written-reasons safeguard also permits prompt review of any concrete adverse decision.

The forty-five-day period likewise reflects the recurring calendar and municipal allocation cycle. Personnel, adjacent reservations, and traffic arrangements cannot always be changed at the last moment. The City may consider later amendments, but an organizer should supply known planned details early. The Guild can submit its core program and adjust as necessary. Its evidence shows inconvenience and negotiation risk, not that forty-five days eliminates a meaningful channel for literary expression.

Nor does use of Cedar Commons define the only available channel. The Guild has an established audience there, a fact entitled to weight, but it can present unpaid speakers, hold shop events, use other suitable spaces, or structure some programs outside the paid-speaker rule. The City does not rely on those options alone. They reinforce that the ordinance coordinates one category of recurring use rather than prohibiting the Guild's message or subject.

IV. The fees are supported administrative charges

The \$240 base charge accounts for intake, site review, departmental coordination, and a written decision. The \$45 speaker increment accounts for schedule review and audience-transition planning associated with each paid presentation. JA15–33, JA49–57. The early timekeeping records use broad categories, so exact minutes differ by file. Constitutional fee doctrine does not require a retrospective invoice for every application before a schedule may operate.

The Guild emphasizes that six authors produce \$510 and a repeated series could produce \$3,060. JA34–43. Those figures matter to its budget but say little about whether the schedule is designed to recover administrative cost. There is no evidence the City funds unrelated programs, raises general revenue, or changes a charge based on content. A fixed schedule inevitably averages varying effort. The court converted imperfect granularity into likely invalidity without evidence that the amounts materially exceed the covered work.

V. The remaining Winter factors do not support this injunction

The Guild's planning interests are genuine, but the alleged injury was not inevitable. No viewpoint inquiry occurred; no completed application or substitution had been denied; the City was willing to consider amendments; and the Guild retained several programming options. A repeated fee is monetary. A lost appearance could be irreparable, yet the record did not identify a specific author whom the City refused to permit. The court treated the mere existence of a deadline as equivalent to suppressed speech.

The City faces more than policy frustration. It must coordinate active public property before each date. Lost planning time cannot be restored after an event, and ambiguous administration risks inconsistent treatment among organizers. These interests deserve weight even absent past violence. Government need not await a serious medical or traffic incident before using preventive planning. The order shifts uncertainty to staff while understating the means available to the Guild.

The public interest incorporates constitutional protection and safe public access. Norvale's ordinance pursues the latter without selecting messages. The district court assumed it could preserve enough neutral authority through general language, but uncertainty over what information and conditions remain allowed undermines consistent planning. The public does not benefit when officials must infer an injunction's scope from an opinion while recurring events approach.

At minimum, the court should have adopted narrower interim relief. It could suspend only the per-speaker fee, require prompt amendment review, or identify prohibited uses of topic information while retaining other procedures. The City proposed partial relief in its stay motion. JA125–130. Enjoining the entire named ordinance against six events, subject to an undefined neutral-rule exception, was broader than necessary to address the specific likely harms the court found.

VI. Rule 65(d) independently requires vacatur

An injunction must state its terms specifically and describe in reasonable detail the restrained acts. The operative command bars enforcement of the “Paid-Speaker Permit Ordinance” while permitting neutral requirements concerning broad operational categories. JA123–124. The combined ordinance and form contain timing, site, attendance, traffic, identity, topic, fee, written-reason, and conditioning provisions. The order does not say which are forbidden, when an amendment is material, or which questions staff may ask.

The memorandum's reasoning cannot substitute for a precise operative command. Employees and parties must know what conduct risks contempt without reconstructing findings across ten pages. *Pashby* enforces that safeguard while allowing district courts to correct warranted relief. Because the current order cannot guide administration reliably, it should not remain the source of coercive obligations during remand.

VII. Rule 65(c) was not addressed

The district court neither set security nor expressly explained a waiver or nominal amount. JA115–124. The City did not propose an exact bond in its opposition, but Rule 65(c) places the determination with the court entering relief. Municipal processing costs, forgone charges, and administrative changes were part of the record. The court needed to identify whether those risks were compensable and exercise discretion openly.

Silence frustrates review and leaves the parties uncertain. The Guild may argue that constitutional plaintiffs should not face substantial security or that the City has shown little recoverable loss. Those arguments support a reasoned low or zero determination, not omission. *Pashby* directs correction when a preliminary order lacks the required Rule 65 analysis. This independent defect warrants vacatur and remand even if the four-factor conclusion survives.

VIII. Relief

The Court should reverse the January 23 preliminary injunction because the Guild did not clearly establish likely success or the remaining factors. The district court applied narrow tailoring as a search for a more direct trigger, discounted the City's record evidence, and treated untested amendment uncertainty as suppression. Reversal would return interim administration to the content-neutral ordinance while the district court resolves the merits.

Alternatively, the Court should vacate and remand for a new, precise Rule 65 order and express security determination. It should not affirm entitlement while automatically extending the existing command. If temporary protection is necessary during a prompt remand, the Court can set a short transition period and direct specific treatment rather than perpetuate language it holds deficient. Any remand should preserve the district court's ability to consider changed facts, further evidence, and narrower terms.

Conclusion

Norvale adopted an objective recurring-event process to coordinate planned compensated presentations at a shared public park. The City acknowledges the protected character of the Guild's speech and does not defend viewpoint review. Its ordinance asks for program and site information, imposes scheduled administrative charges, constrains conditions to documented risks, and requires written reasons. The preliminary record does not clearly establish that this neutral system is constitutionally inadequate.

The injunction also fails to tell officials what they may do and contains no security determination. This Court should reverse. At minimum, it should vacate the January 23 order and remand for a focused Rule 65 proceeding rather than leave the invalid operative terms in force. The unresolved complaint can then proceed on a complete record, with any interim relief carefully tied to proved harms and lawful municipal authority.

Respectfully submitted March 23, 2026, by counsel for the City of Norvale. Counsel requests oral argument and certifies service, compliance with the applicable length and typeface rules, and the absence of sealed personal information.